

Amendment No. 1 to SB0175

Gardenhire
Signature of Sponsor

AMEND Senate Bill No. 175

House Bill No. 36*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 40-35-501(x), is amended by adding the following as a new subdivision:

(3)

(A) By July 1, 2027, and each July 1 thereafter, the commissioner of correction shall deliver to the chair of the judiciary committee of the senate and the chair of the committee of the house of representatives with jurisdiction over the department of correction a report containing the following data in regard to parole under this subsection (x):

(i) The number of individuals certified as eligible for parole;

(ii) The number of individuals granted parole after being certified as eligible;

(iii) The number of individuals denied parole after being certified as eligible;

(iv) The number of individuals certified as eligible for parole and awaiting a hearing at the end of the reporting period;

(v) The number of individuals who were released under this subsection (x); and

(vi) The number of individuals who were granted parole after being certified as eligible but were not released.

(B) The data in subdivision (x)(3)(A) must include:

- (i) The individual's race;
- (ii) The individual's sex;
- (iii) The individual's age;
- (iv) The role of the person who initiated the certification of the individual as parole eligible;
- (v) The highest class of offense for which the individual is incarcerated;
- (vi) The facility where the individual is or was incarcerated;
- (vii) The length of time the individual has been incarcerated;
- (viii) Whether a hearing was held for the individual's request for certification as parole eligible;
- (ix) The outcome of the individual's request for certification as parole eligible;
- (x) The length of time between submission of the individual's request for certification as parole eligible and the commissioner's decision;
- (xi) The length of time between the commissioner's certification and the individual's parole hearing;
- (xii) The length of time between the board's recommendation for release and release from custody;
- (xiii) Whether the individual was released from custody;
- (xiv) Whether the individual died prior to the commissioner's certification; and
- (xv) Whether the individual died after being granted parole but prior to release from custody.

(C) The report must also include any department policies regarding medical parole and a copy of the forms used by the department in the medical parole process.

SECTION 2. Tennessee Code Annotated, Section 41-21-227(i), is amended by adding the following as a new subdivision:

(6)

(A) By July 1, 2027, and each July 1 thereafter, the commissioner of correction shall deliver to the chair of the judiciary committee of the senate and the chair of the committee of the house of representatives with jurisdiction over the department of correction a report containing the following data in regard to furloughs under this subsection (i):

(i) The number of individuals recommended for medical furlough;

(ii) The number of individuals granted medical furlough;

(iii) The number of individuals not granted medical furlough after being recommended for medical furlough;

(iv) The number of individuals recommended for medical furlough and awaiting a determination by the commissioner at the end of the reporting period;

(v) The number of individuals who were released under this subsection (i); and

(vi) The number of individuals who were granted medical furlough but were not released.

(B) The data in subdivision (i)(6)(A) must include:

(i) The individual's race;

(ii) The individual's sex;

(iii) The individual's age;

- (iv) The role of the person who initiated the recommendation for medical furlough;
- (v) The highest class of offense for which the individual is incarcerated;
- (vi) The facility where the individual is incarcerated;
- (vii) The length of time the individual has been incarcerated;
- (viii) Whether a hearing was held for the individual's request for medical furlough;
- (ix) The outcome of the individual's request for medical furlough;
- (x) The length of time between submission of the individual's request for medical furlough and the decision of the departmental director of medical services;
- (xi) The length of time between the recommendation by the departmental director of medical services and the commissioner's decision;
- (xii) The length of time between the commissioner's decision and release from custody;
- (xiii) Whether the individual was released from custody;
- (xiv) Whether the individual died prior to the recommendation for medical furlough; and
- (xv) Whether the individual died after being granted medical furlough but prior to release from custody.

(C) The report must also include any department policies regarding medical furlough and a copy of the forms used by the department in the medical furlough process.

SECTION 3. This act takes effect July 1, 2026, the public welfare requiring it.